

Stereo.HCJDA 38.
JUDGMENT SHEET.

LAHORE HIGH COURT
RAWALPINDI BENCH, RAWALPINDI.
JUDICIAL DEPARTMENT

R.F.A. No.80 of 2008

MUHAMMAD YAQOOB KHAN.

Versus.

PAKISTAN through Secretary Ministry of Defence, (Civil Aviation Division), Govt. of Pakistan and others .

JUDGMENT.

Dates of hearing:	<u>04.02.2025, 19.02.2025 and 25.02.2025</u>
Appellant by:	Ch. Afrasiab Khan, Advocate.
Respondent No.1 by:	Mr. Muhammad Sajid Ilyas Bhatti, Additional Attorney General with Mr. Sagheer Ahmad Bhatti, Law Officer, Civil Aviation Authority.
Respondent No.2 by:	Mr. Muhammad Safdar Janjua, Advocate.
Respondents No.3 to 6 by:	Mr. Shahid Muneer, Assistant Advocate General.

Mirza Viqas Rauf, J. This judgment shall govern the titled appeal as well as R.F.As. No.63,86,96,97,98,99 and 100 of 2008 as all these appeals are arising from award No.LXXXXIX-798-DDO(R)FJ Dated 22nd of September, 2005 whereby land measuring 445-Kanals situated in Revenue Estate of Mehlu, Tehsil Fatehjang, District Attock was acquired for construction of New Islamabad International Airport (hereinafter referred to as “**Airport**”).

2. Before moving ahead, it would be apt to point out that these appeals are before us in pursuance to the order dated 20th November, 2023 passed by the Supreme Court of Pakistan in Civil Appeals No.1453 to 1460 of 2015, C.M.A No.7493 of 2020 and C.M.A. No.9023 of 2020 in Civil Appeal No.1455 of 2015, which reads as follows:-

“3. The dispute in these cases relates to the land acquired to construct the new Islamabad International Airport. The acquired land was of three kinds, that is to say, Maira, Ghairmumkin, and Banjar Qadim. The Land Acquisition Collector, in his award, determined Rs.200,000, per Kanal for Maira land, Rs.90,000,

R.F.As. No.80,63,86,96,97,98,99 and 100 of 2008

per Kanal for Ghairmumkin land, and Rs.100,000, per Kanal for Banjar Qadim. The landowners were not satisfied with this compensation, and as such, they filed a reference before the Civil Court and sought enhancement. The Reference Court partially accepted the claim of the landowners. Both the parties to the reference were discontent with the determination of compensation by the Reference Court, and thus, they filed their separate appeals before the High Court. The appeals were consolidated and were decided vide judgment and decree dated 30th of September, 2015. So, these appeals.

4. It is argued in all these appeals, that the evidence was not properly read and appreciated, which can be seen from the fact that the compensation was to be determined separately for each land, whereas, the High Court has fixed Rs.450,000, per Kanal for all types of land, which is not valid. In this view of the matter, a joint request is made by the learned counsel for the parties that by setting aside the judgment and decree dated 30th of September, 2015, the matter be remitted to the High Court for a fresh decision of their appeals.

5. Given the above joint request, these appeals are accepted. The judgment and decree dated 30th of September, 2015, made by the High Court is set aside. Consequently, the matter is remitted to the High Court for a fresh decision on the appeals, which we expect shall be made within three months. Pending application, if any, is disposed of.”

3. Facts forming background of these appeals are that on the request of the Estate Officer (NIIAP) Civil Aviation Authority Islamabad Airport (hereinafter referred to as “**Beneficiary department**”), Land Acquisition Collector, Fatehjang (hereinafter referred to as “**L.A.C**”) initiated the proceedings for acquisition of land for **Airport**, a project of vital national importance by issuance of notification under section 4 of the Land Acquisition Act, 1894 (hereinafter referred to as “**Act**”), which was approved by the District Collector, and published in the Punjab Gazette on 22nd December, 2004, declaring that the land measuring 445-Kanals specified in the notification is required for the purpose of construction of **Airport**. This followed a notification under sections 17(4) & 6 of the **Act**, whereby provisions of sections 5 and 5-A of the **Act** were waived and Collector was authorized under section 7 of the **Act** to take order for acquisition of the said land. After issuance of notices under sections 9 & 10 of the **Act** and observing other codal formalities, award in terms of section 11 of the **Act** was announced wherein

R.F.As. No.80,63,86,96,97,98,99 and 100 of 2008

compensation for the acquired land was determined in the following manner: -

Name of Village	Kind of Land	Area K-M	Rate per Kanal	Cost of Land
Mehlu Tehsil Fatehjang	Maira	226-07	Rs.2,00,000/-	Rs.4,52,70,000/-
	Ghairmumkin	218-06	Rs.90,000/-	Rs.1,96,47,000/-
	Banjar Qadeem	0-07	Rs.1,00,000/-	Rs.35000/-
Total		445-0		Rs.6,49,52,000/-
15% Compulsory Acquisition Charges				Rs.97,42,800/-
Grand Total				Rs.7,46,94,800/-

The respective owners (hereinafter referred to as “**landowners**”) as well as **Beneficiary department** feeling dissatisfied from the rate of compensation, placed their separate petitions under section 18 of the **Act** before the **L.A.C.**, who routed the same to the learned Senior Civil Judge, Attock, for decision, which were since decided through separate orders, hence these appeals.

Brief Background of R.F.A.No.80 of 2008

4. This appeal is on behalf of one of the **landowners** (Muhammad Yaqoob Khan) arising out of order dated 15th May, 2008 passed by learned Senior Civil Judge, Attock, holding him entitled for compensation at the rate of Rs.4,50,000/- per Kanal along with 15% compulsory acquisition charges but he still feels unsatisfied.

Brief Background of R.F.A.No.63 of 2008

5. This appeal is also on behalf of one of the **landowners** (Muhammad Akhtar Khan) arising out of order dated 15th May, 2008 passed by learned Senior Civil Judge, Attock, holding him entitled for compensation at the rate of Rs.4,50,000/- per Kanal along with 15% compulsory acquisition charges but he still feels unsatisfied.

Brief Background of R.F.A.No.86 of 2008

6. This appeal is too on behalf of one of the **landowners** (Muhammad Nawazish Khan) arising out of order dated 15th May, 2008 passed by learned Senior Civil Judge, Attock, holding him entitled to receive compensation at the rate of Rs.4,50,000/- per Kanal along with 15% compulsory acquisition charges but he still feels unsatisfied.

R.F.As. No.80,63,86,96,97,98,99 and 100 of 2008

Brief background of R.F.A No.96 of 2008

7. This appeal is on behalf of **Beneficiary department** against the same order, which is under challenge in R.F.A No.86 of 2008.

Brief background of R.F.A No.97 of 2008

8. This appeal is also on behalf of **Beneficiary department** against the same order, which is under challenge in R.F.A No.80 of 2008.

Brief background of R.F.A No.98 of 2008

9. The **Beneficiary department** also filed the instant appeal against the order dated 15th May, 2008 passed in reference petition No.61 of 2005 filed by one Muhammad Rafique Khan.

Brief background of R.F.A No.99 of 2008

10. The **Beneficiary department** also challenged the order dated 15th May, 2008 whereby its reference petition was dismissed by learned Senior Civil Judge, Attock.

Brief background of R.F.A No.100 of 2008

11. This appeal is too on behalf of **Beneficiary department** against the same order, which is under challenge in R.F.A No.63 of 2008.

12. Learned counsel representing **landowners** submitted that the compensation awarded to them was insufficient. Contended that **landowners** were entitled to receive compensation at the rate of Rs.5,50,000 per Kanal, as the evidence on record clearly supported their claim. Submitted that **L.A.C.** failed to properly consider the relevant material, which is crucial for determining the actual value of the land, in accordance with the legal principles laid by this Court and the Supreme Court, therefore, **landowners** seek enhancement of the compensation to Rs.5,50,000 per Kanal. Learned counsel further argued that the **Beneficiary department** has failed to demonstrate any valid ground for

R.F.As. No.80,63,86,96,97,98,99 and 100 of 2008

reducing the compensation rate and the Referee Court has rightly dismissed its petitions. In order to supplement his contentions, learned counsel also took us to the relevant documentary evidence.

13. While responding to the contentions of learned counsel for **landowners**, learned Additional Attorney General assisted by Mr. Muhammad Safdar Janjua, Advocate for respondent No.2 argued that the rate determined by the **L.A.C.** was excessively high as compared to the prevailing market rates at the time, the land was acquired. Contended that certain mutations illustrated that the value of the land owned by the **landowners** at that critical time was less than the rate determined by the **L.A.C.** but the Referee Court proceeded to enhance the compensation without adverting to the evidence adduced by the **Beneficiary department**. Learned Law Officer contended that the compensation has been awarded to the **landowners** on excessive rates and the impugned orders are not tenable at all. In the last, learned Law Officer submitted that provisions in the shape of Sections 28 and 34 of the **Act** are meant to safeguard the interest of **landowners** and they are, thus, not entitled to claim compensation on the basis of some other considerations.

14. Heard. Record perused.

15. The process of acquisition of land measuring 445-Kanals situated in Revenue Estate of Mehlu, Tehsil Fatehjang, District Attock, on the request of the **Beneficiary department** for construction of the **Airport**, a project of vital national importance, was launched through notification under section 4 of the **Act** published in the gazette on 22nd December, 2004, which followed notification under section 17 (4) & 6 of the **Act**. The award was finally announced on 22nd of September, 2005. The acquired land comprising of 445-Kanal was segregated in three kinds e.g; Maira, Ghairmumkin and Banjar Qadeem and compensation

R.F.As. No.80,63,86,96,97,98,99 and 100 of 2008

was fixed separately for each kind of land as mentioned in para No.3 above.

16. Being dissatisfied from the compensation determined by the **L.A.C.**, the **landowners** as well as **Beneficiary department** filed their respective references in terms of Section 18 of the **Act** before the **L.A.C.** which were ultimately placed before the learned Senior Civil Judge, Attock. It would not be out of context to mention here that the **landowners** claimed the compensation at the rate of Rs.5,50,000/- per Kanal. In order to prove their claim, **landowners** produced oral evidence in the shape of one witness each namely Muhammad Sadiq Khan as PW-1 in reference petition No.04 of 2005 (R.F.A. No.86 of 2008), Muhammad Yaqoob as PW-1 in reference petition No.02 of 2006 (R.F.A. No.80 of 2008), Rab Nawaz Khan as PW-1 in reference petition No.03 of 2006 (R.F.A. No.63 of 2008) and Muhammad Rafique Khan as PW-1 in reference petition No.61 of 2005 (R.F.A. No.98 of 2008) and also tendered documentary evidence in support thereof, mainly in the shape of sale mutations. To this effect, after remand of the case from the Supreme Court of Pakistan, an application for additional evidence was also moved before us which was accepted by way of order dated 11th June, 2024 in furtherance whereof copies of record of rights and mutations were also brought on record as Exh.P-25 to Exh.P-29 respectively.

17. On the contrary, **Beneficiary department** examined Muhammad Taj Naib Tehsildar as RW-1 in each reference petition filed by the **landowners**, who also produced certain documents to rebut the claim of **landowners**.

18. The **Beneficiary department** also examined Muhammad Taj Naib Tehsildar as AW-1 in the reference petition filed by it and produced certain documents in support of its claim whereas the **landowners** examined Muhammad Sadiq Khan as RW-1 and

R.F.As. No.80,63,86,96,97,98,99 and 100 of 2008

Muhammad Yaqoob Khan as RW-2 to rebut the claim of the **Beneficiary department**.

19. After having appraised the evidence, learned Senior Civil Judge, Attock held entitled **landowners** for compensation at the rate of Rs.4,50,000/- per Kanal along with 15% compulsory acquisition charges. In order to evaluate the findings of the trial Court, we have also reappraised the evidence produced by both the sides with the assistance of learned counsel for the **landowners** and the learned Law Officer.

20. The first and foremost question before us is related to the nature and kind of acquired land. There is no denial to the fact that as per Award (Exh.P-1), out of the total land measuring 445-Kanals, 226-Kanals 7-Marlas was Maira, 218-Kanals 6-Marlas was Ghairmumkin and 7-Marlas was treated as Banjar Qadeem for all of which compensation at separate rates was determined as mentioned hereinabove. To this effect when contents of reference petitions are examined, it is apparent therefrom that as per own stance of **landowners** (M/s Muhammad Yaqoob Khan and Muhammad Akhtar Khan), their land is recorded as Ghairmumkin in the revenue record though part of it is under cultivation (مزرعہ). It is asserted in the reference petitions that in their written objections before L.A.C., above named **landowners** requested that their land be treated as uniform (مخلوط) instead of Maira, Banjar Qadeem and Ghairmumkin and they be awarded compensation at the uniform rate of Rs.5,50,000/- per Kanal. Contrary to this, as per stance of **landowner** Muhammad Nawazish Khan, his total land measuring 127-Kanal was acquired out of which 126-Kanal 6-Marla was Maira, 11-Marla was Ghairmumkin and 3-Marla was Banjar Qadeem, which averments were conceded by the **Beneficiary department** in their reply. It is, thus, apparent that a big chunk of land of **landowner** Muhammad Nawazsih Khan was in the nature of Maira

R.F.As. No.80,63,86,96,97,98,99 and 100 of 2008

whereas only a meagre portion was either Ghairmumkin or Banjar Qadeem. It would not be out of place to mention here that Muhammad Sadiq Khan, being special attorney of Muhammad Nawazish Khan, when appeared as PW-1, he stated that whole land measuring 127-Kanal is in the nature of Maira. This was surely the reason for the learned Senior Civil Judge, Attock to fix the compensation at the uniform rate. Even before us, learned counsel for the **landowners** submitted that land owned by Muhammad Yaqoob Khan and Muhammad Akhtar Khan is in the nature of Ghairmumkin whereas land of Muhammad Nawazish Khan is Maira, which is even not refuted seriously by the **Beneficiary department**.

21. In order to analyze and comprehend the classification and nature of different kinds of soils e.g, Maira, Ghairmumkin and Banjar Qadeem, we have to advert to the *Settlement Manual by DOUIE'S* (hereinafter referred to as "**Manual**"). Chapter XIII of the **Manual** deals with the classes of lands and soils. Para 259 of the **Manual** deals with classes of land and reads as under:-

“259. **Classes of land**-In a country of small rainfall the most important division of land into classes is that founded on the source from which the moisture required for the growth of the crops is derived. Thus land is classified as-

- (a) *barani*-dependent or rainfall;
- (b) *sailab*-flooded or kept permanently moist by rivers;
- (c) *abi*-watered by lift from tanks, *jhils*, or streams. This term is also applicable to land watered from springs;
- (d) *nahri*-irrigated from canals. Where a Government canal and small private canals exist in the same district the land served by the former is sometimes distinguished as *shah nahri*.
- (e) *chahi*-watered from wells. The term is sometimes sketched so as to include irrigation from *jhals* erected on the bank of a stream. It is better to describe land dependent on *jhals* as *jhalsari* or *abi*.

The first two classes fall under the general head of unirrigated, and the last three under that of irrigated land”.

R.F.As. No.80,63,86,96,97,98,99 and 100 of 2008

*Para 262 of the **Manual** is related to soils which is relevant for the present case, enabling us to determine the actual status of Ghairmumkin and Maira land. For the ease of reference, para 262 is reproduced below:-*

“262. **Soils** -The first Punjab Settlement Officers brought from the United Provinces the distribution of soils into *dakar* or *matyar* (clay), *rausli* (loam), and *bhur* (sand), and they found this or some such simple Punjabi classification as, for example, *rohi*, *maira* and *tibba*, sufficient for their purposes. *Niai* was sometimes treated as a separate class, and distinctions founded on the presence or absence of irrigation or inundation were recorded, though not always, under the names now in vogue. The natural soils with the addition, perhaps, of *niai*, formed subdivisions of the classes based on the presence or absence of irrigation. Some officers found even this amount of elaboration useless when they came to frame revenue rates, and two of the best of the early Settlement Officers, Sir Richard Temple in Jullundur and Mr. Philip Melvil in Hoshiarpur and Ambala, rejected all soil distinctions, and simply classed land as irrigated or unirrigated. In come of the settlements made between 1870 and 1880 a minute classification of soils under their local names was attempted, those supposed to be of nearly equal value being grouped together for assessment purposes. Thus in the Nawashahr Tahsil of Jullundur Mr. Purser recorded as many as twenty *barani* soils which he arranged in three classes, for each of which a separate revenue rate was proposed. Colonel Wace was impressed with the futility of recording distinctions of which no practical use was made, and he was anxious that no elaboration should be admitted into settlement procedure which would afterwards increase the difficulty of maintaining the *patwari*'s annual records and returns. Accordingly, when Financial Commissioner he issued instructions, the effect of which has been that the use of soil distinctions has been very generally abandoned, and Settlement Officers have confined themselves to a record of the classes based on the presence or absence of the several kinds of artificial irrigation or river flooding.”

(Underlining supplied for emphasis)

*In the latter part while dealing with the matter of classification, loam is termed as Maira as is evident in para 265 of the **Manual**, which reads as under:-*

“265. **Classification should be simple**-No general rule can be laid down. for everything depends on local circumstances. All that can be said is that the classification should be as simple as possible, and be based on broad differences of a fairly permanent character which affect in a marked degree the economic rental of the land. The test to be applied to it is its sufficiency for practical purpose, for, as has been well remarked, a "Settlement Officer must remember that he is a land valuer, and not a mineralogist.”

R.F.As. No.80,63,86,96,97,98,99 and 100 of 2008

The use of such distinctions as *nian* and *dofasli* is dangerous, unless it is certain that the conditions these terms denote are permanent attributes of the land to which the terms are applied. In districts north of the Salt Range it is quite right to record separately the unirrigated manured land near houses, for the people themselves recognize that such lands are far more valuable than the rest of the unirrigated area. It is much more doubtful whether another distinction in vogue in these districts between embanked land or *las* and ordinary loam or *maira* is worth retaining in our records for landowners often refuse to make any difference between them in distributing the revenue over holdings. Poor stony or very sandy land below the hills is known as *rakar* and very sloping land on hillsides as *kalsi*, and they ought to be so recorded, because the assessment rates applied to them must be far lower than those adopted for *maira*. A wide divergence between the cash rents usually paid on two classes of land is the best proof of the necessity of showing them separately in the record. This affords ample justification for recording sandy uneven land as *bhur* in some of the south-eastern districts. Where the produce is divided, both the share taken by the landlord and the crops grown must be considered. Any change in the classification hitherto followed in the annual returns, unless it be in the direction of greater simplicity, must embarrass a Settlement Officer in his use of the statistics which they contain, but this should not prevent the alteration at settlement of an existing classification which is clearly insufficient. The scheme adopted must be on the same lines throughout a district, but a division of land among different soils, which is found necessary in one circle, should not be carried on into another where it is not required. Every needless elaboration should be avoided; for example may be quite useless to record for irrigated lands the soil differences which are of practical importance in the case of unirrigated lands. But it is some times advisable to record the difference between lands irrigated by sweet and bitter wells.”

(Underlining supplied for emphasis)

In Oxford Advance Learner's Dictionary (Internal Student's Edition) (New 9th Edition), at page 887, the word “loam” is defined as “good quality soil containing sand, CLAY and decayed vegetable matter”. Collins English Dictionary defines the word “loam” as rich soil consisting of a mixture of sand, clay, and decaying organic material. The Dictionary Contemporary English (New Edition) also define the term “loam” as good quality soil consisting of sand, clay and decayed plants.

*Para 267 of the **Manual** deals with classification of uncultivated land wherein alongwith Banjar Jadid, Banjar Qadeem and Ghairmumkin is*

R.F.As. No.80,63,86,96,97,98,99 and 100 of 2008

also classified as part of uncultivated land. In ordinary parlance Ghairmumkin land is uncultivated such as bed of a nullah, road graveyard etc. Whereas Maira is a kind of land clear of pebbles and sand but it may also have little pebbles and sand or mixture of both. From the comparative analysis of both Maira and Ghairmumkin land, there is no cavil that both are of different characteristic.

22. *After having a preview of the relevant excerpt of the **Manual** and the respective stances of the parties in their pleadings and evidence, it can safely be held that the land of **landowners** namely M/s Muhammad Yaqoob Khan and Muhammad Akhtar Khan was Ghairmumkin whereas land of landowner Nawazish Khan was in the nature of Maira. Before proceeding further, we thus, can now hold without any hesitation that there exists marked distinction between nature and status of land noted hereinabove i.e. Maira, Ghairmumkin and Banjar etc and they cannot be treated similar and akin to each other.*

23. *Now adverting to the matter relating to the compensation of acquired land, we feel no cavil to observe that Section 23 of the **Act** provides the mechanism for the determination of compensation for its award to the **landowners** in lieu of acquisition of their land. For ready reference and convenience, same is reproduced below: -*

“23. Matters to be considered in determining compensation.—

(1) In determining the amount of compensation to be awarded for land acquired under this Act, the Court shall take into consideration—

Firstly, the market value of the land at the date of the publication of the notification under section 4, sub-section (1);

Secondly, the damage sustained by the person interested, by reason of the taking of any standing crops or trees which may be on the land at the time of the Collector’s taking possession thereof;

Thirdly, the damage (if any) sustained by the person interested, at the time of the Collector’s taking possession of the land, by reason of severing such land from his other land.

R.F.As. No.80,63,86,96,97,98,99 and 100 of 2008

Fourthly, the damage (if any) sustained by the person interested, at the time of the Collector's taking possession of the land, by reason of the acquisition injuriously affecting his other property, movable or immovable, in any other manner, or his earnings;

Fifthly, if, in consequence of the acquisition of the land by the Collector, the person interested is compelled to change his residence or place of business, the reasonable expenses (if any) incidental to such change; and

Sixthly, the damage (if any) *bona fide* resulting from diminution of the profits of the land between the time of the publication of the declaration under section 6 and the time of the Collector's taking possession of the land.

(2) In addition to the market-value of the land as above provided, the Court shall award a sum of fifteen per centum on such market-value, in consideration of the compulsory nature of the acquisition.

(3) For the purpose of clause first of sub-clause (1) of this section the market value of the land shall be determined on the basis of the average net income of that land for the five years preceding 1st September, 1961:

Provided that if in any of these years that land or any portion of it has not been cultivated, the net income of such land or portion in that year shall be taken to be three times the land revenue assessed thereon, if no land revenue has been so assessed, three times the lowest rate of land revenue assessed on neighboring land;

Provided further that in respect of land which is situated in town or village abadi or land which is attached to a house, manufactory, or other building and is reasonably required for the enjoyment and use of the house, manufactory, or building, the market-values shall be the market-value according to the use to which the land was being put on the 1st September, 1961."

From the bare reading of the above provision, it is apparent that the intent of legislature was to give it wider scope so the factors for the purpose of determination of compensation cannot be restricted to some specific conditions.

24. *The scope and object of Section 23 of the Act has continuously remained under consideration before the superior courts of the country. As a nutshell of discussion so far made upon the true import of Section 23 of the Act, its salient features outlined are as under:-*

- (a) market value of land at the prevalent time and its potential;

R.F.As. No.80,63,86,96,97,98,99 and 100 of 2008

- (b) one year average of sale taken place before publication of notification under section 4 of the Act of the similar land;
- (c) its likelihood of development and improvement;
- (d) a willing purchaser would pay to a willing buyer in an open market arms length transaction entered into without any compulsion;
- (e) loss or injury occurred by severing of acquired land from other property of the land owner;
- (f) loss or injury by change of residence or place of business and loss of profit;
- (g) delay in the consummation of acquisition proceedings and;
- (h) peculiar facts and circumstances of each case.

25. Section 23 of the **Act**, thus, does not restrict or hinge upon a single factor, rather it provides for various matters to be taken into consideration while determining compensation. We are mindful of the fact that initially, there was a trend that while determining the compensation, market value of the land at the date of publication of notification under section 4 of the **Act** was mainly taken into consideration but with the passage of time, law to this effect has gone under radical change and now the dominant factor is the potential value of the land. Market value is only one of such factors to be considered for the purpose of award of compensation to the **landowners**. Location, neighborhood, potentiality or other benefits, which may ensue from the land in future could not be ignored. The most dominant and guiding factor would be that the compensation should be determined at the price, which a willing buyer would pay to a seller as per his satisfaction. But at the same time, one cannot lose sight of the fact that compensation cannot be determined and awarded to the **landowners** as a bounty of state without taking into consideration the above noted salient features.

26. Taking into account the guiding principles, we when examined the evidence produced by both the sides we have noticed that compensation was claimed by the **landowners** in their reference petitions @ Rs.550,000/- per Kanal, in support whereof, they examined

R.F.As. No.80,63,86,96,97,98,99 and 100 of 2008

sole witness mentioned hereinabove as PW-1. In furtherance to the oral account, sale mutations for the relevant period were also tendered in evidence. As already observed that previously this appeal alongwith connected appeals was decided by way of judgment dated 30th September, 2015, which was challenged before the Supreme Court of Pakistan in Civil Appeals No. No.1453 to 1460 of 2015 and finally while allowing the appeals, the Supreme Court of Pakistan remanded the matter by way of order dated 20th November, 2023. In post remand proceedings, the **landowners** moved an application for additional evidence which was allowed and in furtherance thereof copies of record of rights and mutations were produced as Exh.P-25 to Exh.P-29, upon which, the **landowners** have now mainly rested their claim. In order to diminish the claim of the **landowners**, **Beneficiary department** examined Muhammad Taj, Naib Tehsildar as RW-1 who in his statement tried to justify the quantum of compensation awarded by the **L.A.C.** He also produced certain mutations in support thereof. From the joint analysis of the evidence produced by both the sides it is manifestly clear that sale mutations for the relevant period produced by both the sides indicate the notable difference of price. As per respective mutations brought on record by the **landowners** effected in the relevant period, the average price of Maira land comes to Rs.5,55,000/- per kanal whereas average price of Ghairmumkin land comes to Rs.3,04,516/- per kanal. Contrary to this, in terms of sale mutations produced by the **Beneficiary department**, the average price of Maira land comes to Rs.104,595/- per kanal whereas for Ghairmumkin land average price comes to Rs.51939/- per kanal. Though there is a sudden hike in the sale price of land in the year 2006 but certainly it was due to acquisition of land for the construction of **Airport** in the near past. The **landowners** themselves claim Rs.5,50,000/- as fair compensation for their land, which was determined uniformly @ Rs.4,50,000/- per Kanal by the Referee Court but while segregating the acquired land to its actual status and classification in terms of the judgment of the Supreme Court, we are of

R.F.As. No.80,63,86,96,97,98,99 and 100 of 2008

the considered view that the land owners are entitled for the compensation of their Maira land as Rs.3,50,000/- per Kanal whereas for Ghairmumkin land they are entitled for Rs.2,00,000/- per Kanal, being average price reflecting from the respective relevant mutations produced by both the sides.

27. Adverting to the contentions of **landowners** that while awarding the compensation, the potential value of the land should be taken into consideration, we would like to observe that no exception can be drawn to this extent. But as we have already observed that for determining the fair compensation, there are numerous factors, which are to be taken into consideration and the prime of which is undoubtedly the potential value, which will always be rested upon the facts and circumstances of each case and it would vary from the case to case as well. We are mindful of the fact that through the process of acquisition, a landowner is to be deprived of his property which is a stringent step but right of an individual cannot take precedence upon the right of general public. Acquisition of land is always meant for the benefit of large segment of society at the alter of rights of a specific group of society or the individual.

28. Needless to observe that right of a citizen to hold property is not unfettered and unbridled but it is always subject to the law of land. In order to provide reasonable protection to the proprietary rights of a citizen whose land is to be acquired, the legislature inserted Sections 28 and 34 in the **Act** wherein a landowner who has been deprived of his/her land is held entitled to receive interest in addition to the compensation amount. So, keeping in view the said mandate, the learned Senior Civil Judge, Attock, held the **landowners** entitled to get 15% compulsory acquisition charges alongwith compensation, which in all respects, is justifiable and according to law.

R.F.As. No.80,63,86,96,97,98,99 and 100 of 2008

29. The nutshell of above discussion is that instant appeal as well as connected appeals (R.F.A No.63 of 2008 and R.F.A No.86 of 2008) filed by the **landowners** are **dismissed** with above-noted modification whereas the appeals preferred by the **Beneficiary department** (R.F.As. No.96, 97, 98, 99 and 100 of 2008) are partly **allowed**. No order as to costs.

(Jawad Hassan)
JUDGE

(Mirza Viqas Rauf)
JUDGE

Dictated:
13.03.2025
Signed
17.04.2025.

Announced in open Court on 17.04.2025.

(Asim Hafeez)
JUDGE

(Mirza Viqas Rauf)
JUDGE

Approved for reporting.

JUDGE

JUDGE